

Shivanand S/O Pomappa Rathod vs Nagubai W/O Shivanand Rathod on 7 June, 2023

Author: S G Pandit

Bench: S G Pandit

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MFA No. 100792/2019

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH

DATED THIS THE 07th DAY OF JUNE, 2023

PRESENT

THE HON'BLE MR JUSTICE S G PANDIT

AND

THE HON'BLE MR JUSTICE VIJAYKUMAR A.PATIL

MISCELLANEOUS FIRST APPEAL NO.100792 OF 2019

(FC-)

BETWEEN:

SHIVANAND S/O. POMAPPA RATHOD,
AGE 44 YEARS, OCC: KEB METER READER,
R/O. TIMMAPUR R.C., TQ. BAGALKOT.

...APPELL

(BY SRI. PRAKASH N. HOSAMANE, ADVOCATE)

AND:

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B SHELAR Court of
Karnataka,
Dharwad
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NAGUBAI W/O. SHIVANAND RATHOD, AGE 41 YEARS,
OCC: HOUSEHOLD WORK, R/O, KARIHALLA TANDA, TAL.
B. BAGEWADI, DIST.VIJAYAPUR,

...RESPONDENT

(SRI. PRASHANT S. KADADEVAR, ADVOCATE FOR RESPONDENT)

THIS MFA IS FILED U/S.28 OF THE HINDU MARRIAGE ACT, 1955, AGAINST THE JUDGMENT AND DECREE DATED 04.12.2018 PASSED IN MATRIMONIAL CASE NO.44/2013 ON THE FILE OF THE PRINCIPAL SENIOR CIVILJUDGE, BAGALKOT, DISMISSING THE PETITION FILED UNDER SECTION 13(1)(ia)(ib) OF HINDU MARRIAGE ACT.

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MFA No. 100792/2019

THIS APPEAL, COMING ON FOR ORDERS AND HAVING BEEN HEARD AND RESERVED FOR JUDGMENT, THIS DAY, VIJAYKUMAR A. PATIL, J., DELIVERED THE FOLLOWING:

JUDGMENT

This appeal has been filed under Section 28(1) of the Hindu marriage Act 1955 against the judgment and decree dated 04.12.2018 passed in M.C.No.44/2013 by the Principal Senior Civil Judge, Bagalkot, by which the petition filed by the appellant-husband seeking for dissolution of marriage on the ground of cruelty and desertion was dismissed.

2. Brief facts giving rise to filing of the appeal are briefly stated that the marriage between the appellant and the respondent was solemnized on 16.04.2020 at Hire- gulabal Tanda of Bijapur tanda as per the customs of their community. After the marriage the respondent-wife went to the matrimonial home and started leading marital life with the appellant. After staying 15 days with the appellant she went back to her parents house and she has stayed four days in her parents house and came back to the matrimonial home. It is averred that, the mother of the appellant questioned the act of respondent going to her parents house immediately the respondent started quarreling with the appellant and his mother, the respondent informed that, she intend to stay with the parents and the mother of the appellant should not question the respondent on the said issue. It is further averred that, the respondent has insisted the appellant that, she should resign from his job and he should reside with her in her parents house. However, the appellant has not acceded to her request which has caused the respondent-wife to quarrel with the appellant frequently and use to go to her parents house without informing the appellant or any other family members. The respondent went to her parents house after two years of the marriage without informing the appellant and after two to three days she returned back to the matrimonial home and not disclosed why she has left the matrimonial home. When the said fact was brought to the notice of the parents of the respondent, who have advised the respondent however she has not changed her attitude. It is also averred that after six years of marriage the respondent started behaving like ghost and some time she has told that, she would kill the mother of the appellant if she questions the respondent. The brother of the respondent is residing in Ratnagiri and respondent was also residing with her brother, at that time the respondent has developed illicit relationship with one Sri. Nemu. It is also averred that, out of

the wedlock three children have born and respondent never taken care of the children nor prepared food to the appellant and children. After eight years of their marriage, the respondent started to bring lemon and yellow powder to the house and she use to apply the same on her body during the night hours and she threatened the petitioner that if he come near to her he will die and she is like mother to him. These aspects were brought to the notice of the parents of the respondent and elders and she has been taken to hospital, temples and dargas, now the respondent is residing with her parents deserting the appellant and she has refused to come back to the matrimonial home to lead married life with the appellant. She has filed false case for dowry harassment at Bagalkot Rural Police Station and the said case has resulted in acquittal on the ground that the respondent has failed to prove cruelty and dowry harassment and she has also filed cases for maintenance against the appellant.

3. The respondent-wife has entered appearance before the trial Court by filing her written statement through her counsel. It is averred that, the allegation of cruelty is denied as false and made without any basis. She has admitted the relationship and birth of the children. However, she has empathetically denied the other averments made in the petition. It is averred that, it is the appellant and her mother use to harass the respondent mentally and physically from the day one of the marriage and the respondent has tolerated such acts with a hope that the appellant would change his attitude and it is averred that the appellant is having illicit relationship with another lady and when the respondent questioned the said relationship, the appellant use to start quarrelling with the respondent and caused mental cruelty to her. Hence, she was forced to file complaint before the Bagalkot Rural Police Station and also filed a petition seeking for maintenance and sought for dismissal of the petition.

4. The Family Court after framing the issues has recorded the evidence of the parties. The appellant has examined himself as P.W.1 and other two witnesses as P.W.2 and P.W.3 and produced seven documents as Ex.P.1 to Ex.P.7. The respondent examined herself as R.W.1 and not produced any document. The trial Court vide Judgment dated 04.12.2018 inter alia held that, the appellant has failed to prove the grounds of cruelty and desertion. Accordingly, the petition filed by the appellant was dismissed.

5. Learned counsel Sri. Prakash Hosamane for the appellant submits that, the Family Court has not appreciated the evidence on record in its proper perspective. It is submitted that, from the inception of the marriage, the respondent was quarrelsome and she was of the habit to leave the matrimonial home without informing the appellant and other family members and when the said act was questioned, the respondent use to quarrel with the appellant and his family members and has caused mental cruelty on the appellant. It is further submitted that, the respondent after giving birth to three children, has failed to perform the marital obligations and not acted as a dutiful wife and not taken care of the children, she never use to prepare the food to the appellant nor to the children. She was in habit of suspecting the character of the appellant. On one occasion, she has applied the turmeric powder on her body at night while sleeping and threatened the appellant that if he come near to the respondent, he would die and she has threatened to kill his mother.

6. It is further submitted that, the respondent has left the matrimonial home without any reason or rhyme and started living with her parents by deserting the appellant and children. It is the appellant who has provided good education to all the three children who are now major and the respondent has not bothered to come to the matrimonial home and lead marital life. It is also submitted that, the respondent has initiated malicious prosecution against the appellant which has resulted in acquittal. The said act of the respondent amount to mental cruelty. These aspects have not been properly considered by the trial Court resulted in dismissal of the petition filed by the appellant. It is submitted that, the appellant has placed on record the copies of the compliant at Ex.P.4 to P.7 to substantiate the fact that the respondent-wife with an intention to forcibly take the possession of the daughter has broke open the door of the appellant's house and took away cash of Rs.50,000/- and he has filed police complaint against the respondent. Such act of the respondent are very serious and these aspects have not been considered by the trial Court and rejected the petition.

7. Per contra, Sri. Prashant S. Kadadevar, for respondent supports the impugned Judgment and decree and submits that, it is the appellant use to cause mental cruelty on the respondent which has resulted in respondent living separately. It is submitted that, the trial Court has considered the evidence on record and given specific finding that the appellant has failed to prove the grounds of cruelty and also failed to prove that the respondent has deserted the appellant and rightly dismissed the petition under Section 13 of the Hindu Marriage Act and the same does not call for any interference in the present appeal.

8. We have heard learned counsel for the appellant and the respondent, perused the memorandum of appeal and the trial Court records. It is not in dispute that, the appellant and the respondents are the husband and wife respectively and from the wedlock, three children have born and all the three children have attained age of majority and they are with the appellant husband. The

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appellant in order to prove the grounds of cruelty, has examined himself by filing the affidavit and he has relied on Ex.P.1 to Ex.P.7 to substantiate the grounds of cruelty and desertion. On close scrutiny of the evidence on record, it is evident that, the respondent use to visit her parents house frequently without informing the appellant and she has insisted the appellant to resign from his job and insisted to reside with her in her parents house and she use to quarrel with the appellant for one or the other reasons. Further allegation that the respondent had illicit relation with one Nemu and after eight years of marriage she started to bring lemon and yellow powder and she use to spread the said powder around the bed and she use to tell that if the appellant came near to her, he would die and she has threatened to kill the mother of the appellant. These allegations are denied by the respondent in her written statement and evidence, however, it can be fairly inferred that, the respondent was quarrelsome women from the beginning of her marriage and she has failed to perform her duties as a dutiful wife. The act of respondent

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bringing lemon and putting yellow powder around her and threatening the husband and mother in law amounts to mental cruelty. The act of respondent frequently leaving the matrimonial home without informing the appellant or any of the family member is also amounting to mental cruelty, the respondent in her objections or evidence has not given any justifiable reason for such acts. It is admitted fact that, the respondent has filed a criminal case against the appellant alleging cruelty and the said case has resulted in acquittal. The appellant has produced seven documents before the trial Court as Ex.P.1 to P.7. Ex.P.1 is the certified copy of the Judgment in C.C.No.1591/2011 passed by Additional Civil Judge and JMFC Bagalkot, wherein a categorical finding is recorded that the allegations of cruelty are not proved against the appellant and the appellant has been acquitted in the said case. It would be useful to refer the decision of the Hon'ble Supreme Court in the case of K.SRINIVAS VS. K.SUNITA, reported in (2014) 16 SCC 34, wherein, at paragraph No.5 has held as under:

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"In these circumstances, the High Court ought to have concluded that the respondent- wife knowingly and intentionally filed a false complaint, calculated to emarrass and incarcerate the Appellant and seven members of his family and that such conduct unquestionably constitutes cruelty as postulated in Section 13(1)(ia) of the Hindu Marriage Act.

We unequivocally find that the
respondent-wife had filed a false criminal

complaint, and even one such complaint is sufficient to constitute matrimonial cruelty."

9. Keeping in mind the ratio of the decision of the Hon'ble Supreme Court supra, the filing of the criminal case by the respondent-wife against the appellant- husband which has resulted in acquittal amounts to mental cruelty. The criminal Court has acquitted the appellant on the ground that the charges of cruelty leveled against the appellants are not proved. Hence, in our considered opinion the act of the respondent-wife in filing false criminal case amounts to mental cruelty against the appellant/husband.

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10. The trial Court has failed to appreciate the conduct and act of the respondent that she has forcefully break opened the door of the appellant's house and tried to take possession of the daughter illegally and to substantiate such conduct of the respondent, the appellant has placed reliance on Ex.P.6 and Ex.P.7 the certified copy of the complaint filed before the Bagalkot Rural Police Station against the respondent. The trial Court has recorded the finding that, it cannot take note of the subsequent event which has taken place after presentation of the petition. No doubt the appellant ought to have amended his petition by raising additional grounds of cruelty, however, the family Court ought to have taken cognizance of the subsequent act which further establishes the fact that, the respondent is a quarrelsome women and has caused mental cruelty on the appellant. The

Family Court has erred in appreciation of evidence on record, which has resulted in giving erroneous finding. The Family Court has recorded the finding that the appellant and the respondent have made allegation of illicit relations against

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each other. However, they failed to prove the same by proper and cogent evidence, we do not find any error in the said finding. The Family Court has recorded further finding that, the conduct of the appellant in filing the instant petition which is only after the acquittal from the criminal case is also creates doubt in the mind of the court regarding the alleged cruelty on the part of the respondent. Hence, the contents of Ex.P.1 Judgment not in any way comes to the aid of the appellant to prove the allegation of cruelty. The aforesaid finding of the trial Court is without any basis. The appellant has every right to present the petition raising the grounds of cruelty after acquittal in the criminal case as it would be an additional circumstance to seek the dissolution of marriage on the ground of cruelty when there is a finding that the appellant has not subjected the respondent with cruelty and resulted in acquittal of criminal charges, the Family Court has failed to appreciate pleading, evidence on record in its proper perspective which has resulted in arriving at incorrect conclusion.

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11. Thus, from the evidence on record we are of the view that, the appellant has proved the ground of cruelty to dissolve the marriage. Hence, we pass the following:

ORDER The appeal is allowed.

The impugned Judgment and Decree dated 04.12.2018 in M.C.No.44/2023 on the file of the Principal Senior Civil Judge, Bagalkot, is set aside.

The marriage between the parties is dissolved by a decree of divorce on the ground of cruelty as prescribed under Section 13(1)(ic) of the Hindu Marriage Act, 1956.

Sd/-

JUDGE Sd/-

JUDGE Sv/-